

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 880

Introduced by Guereca, 7.

Read first time January 08, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Uniform Residential Landlord and Tenant
- 2 Act; to amend section 76-1401, Revised Statutes Supplement, 2025; to
- 3 prohibit landlords from prohibiting or charging extra fees for
- 4 payments made by automated clearinghouse transfer; to harmonize
- 5 provisions; and to repeal the original section.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 76-1401, Revised Statutes Supplement, 2025, is
2 amended to read:

3 76-1401 Sections 76-1401 to 76-1449 and section 2 of this act shall
4 be known and may be cited as the Uniform Residential Landlord and Tenant
5 Act.

6 **Sec. 2.** A landlord shall not:

7 (1) Prohibit a tenant from making any payment by means of an
8 automated clearinghouse transfer; or

9 (2) Charge a tenant any extra fee for a payment made by means of an
10 automated clearinghouse transfer.

11 **Sec. 3.** Original section 76-1401, Revised Statutes Supplement,
12 2025, is repealed.